

## EMPLOYMENT AGREEMENT

No. 456, Galle Road, Colombo 03, Sri Lanka

Company Registration No: PV 12345

(Hereinafter referred to as "the Employer")

**\*\*KASUN PERERA\*\***

No. 23/5, Temple Road, Nugegoda, Sri Lanka

NIC: 199012345678

(Hereinafter referred to as "the Employee")

## COMMENCEMENT AND POSITION

The Employee's employment shall commence on 15th January 2026 in the position of Senior Sales Executive in the Sales and Marketing department.

The Employee shall report to the General Manager or to such other officer as may be designated by the Employer from time to time and shall perform duties reasonably related to the Employee's position, as assigned by the Employer. Any assignment of duties will be carried out in a manner consistent with applicable labour laws and principles of fairness.

The Employee's place of work shall be at the Employer's registered office or any other location as may be determined by the Employer.

## PROBATIONARY PERIOD

The Employee shall serve a probationary period of three (3) months from the date of commencement.

During the probation period, the employer may terminate the employment for a valid reason, provided that the employee is given appropriate notice or compensation in accordance with applicable labour laws.

## REMUNERATION AND BENEFITS

The Employee shall receive a monthly salary of LKR 85,000.00 (Rupees Eighty-Five Thousand only), payable on or before the last working day of each month by bank transfer to the Employee's designated account.

## WORKING HOURS

The normal working hours of the Employee shall not exceed eight (8) hours on any day and forty-five (45) hours in any week, exclusive of intervals allowed for rest or meals, in accordance with applicable law.

Where the Employee has been employed by another employer on the same day, the Employer shall ensure that the total hours worked by the Employee on that day do not exceed the maximum daily hours prescribed by law.

## LEAVE ENTITLEMENTS

The Employee shall be entitled to seven (7) days of casual leave per calendar year.

The Employee shall be entitled to seven (7) days of sick leave per calendar year, subject to production of a medical certificate from a registered medical practitioner.

Female Employees shall not be entitled to any maternity leave or related benefits under any circumstances, as company policy does not provide for such benefits.

The Employee shall not be entitled to any public or government-declared holidays, shall work on all such days as ordinary working days, without compensation, and shall have no right to dispute or challenge this requirement in any forum.

#### TERMINATION OF EMPLOYMENT

Either party may terminate this Agreement by providing one (1) month's written notice or payment in lieu of notice.

The Employer reserves the right to terminate employment with 24 hours' notice for any reason whatsoever, and the Employee agrees not to challenge such termination through any legal forum or labour tribunal.

In the event of termination for serious misconduct or gross breach of duties, the Employer may terminate the Employee immediately without notice or payment in lieu, subject to proper investigation and documentation of the misconduct.

Any application relating to termination must be filed with the Labour Tribunal within fourteen (14) days from the date of termination, failing which all rights shall be deemed waived.

Upon termination, the Employee shall return all company property including ID cards, access cards, documents, equipment, and any other materials belonging to the Employer.

## DISPUTE RESOLUTION

The Parties agree that no industrial dispute shall be referred to the Commissioner of Labour, and all disputes shall be resolved solely between Employer and Employee without any third-party intervention.

Any dispute arising under this Agreement shall not be subject to conciliation, arbitration, or labour tribunal proceedings, and must be settled internally by the Employer with final and binding authority.

The Employer shall have the sole authority to decide disputes without intervention by the Commissioner or any authorized officer.

Any settlement of an industrial dispute may be deemed valid even if not recorded in writing or signed by either party, and the Employer's verbal representation shall be sufficient.

## RETRENCHMENT

The Employer may retrench any Employee immediately without providing any prior notice.

The Employer may implement retrenchment effective immediately upon verbal notification, and all retrenchment provisions shall apply regardless of the number of employees employed by the company.

The Employer may hire new Employees without giving preference to previously retrenched workers, even for positions identical to those previously held.

No compensation shall be payable for retrenchment unless expressly agreed in writing by the Employer at its sole discretion.

#### LABOUR TRIBUNAL PROCEEDINGS

The Employee waives any right to approach a labour tribunal regarding termination or any dispute with the Employer, and agrees that all decisions of the Employer shall be final and binding.

Any clause in this Agreement limiting worker rights shall be valid and enforceable notwithstanding any labour tribunal decision or statutory provision to the contrary.

#### EMPLOYEE CONDUCT AND PROTECTION

The Employee may be disciplined or terminated for providing evidence in any legal or tribunal proceedings involving the Employer or its business interests.

The Employer may terminate or penalize Employees for claiming collective agreement benefits or tribunal-awarded rights.

Any contract clause limiting or modifying worker rights under the Industrial Disputes Act or other legislation shall be valid and enforceable as written.

The Employee shall not engage in any conduct that brings the Employer into disrepute or harms the business interests of the Employer.

## CONFIDENTIALITY AND INTELLECTUAL PROPERTY

The Employee agrees to maintain strict confidentiality regarding all proprietary information, trade secrets, customer lists, pricing information, business strategies, and business operations of the Employer during and after employment.

All intellectual property, inventions, designs, and creative works created by the Employee during the course of employment shall belong exclusively to the Employer.

The Employee shall not, during employment or for a period of two (2) years following termination, engage in any business competing with the Employer within a 50-kilometer radius of any Employer business location.

Any alleged breach of confidentiality shall result in summary dismissal with immediate effect, without investigation, explanation, or opportunity to be heard, and such dismissal shall be final and binding, and not subject to challenge or review under any circumstance, and the Employer's assessment of damages shall be conclusive.

## GENERAL PROVISIONS

This Agreement constitutes the entire agreement between the parties and supersedes all prior negotiations, understandings, and agreements whether written or oral.

Any amendment to this Agreement must be made in writing and signed by both parties.

The terms of any settlement shall not affect the employment contract and shall have no binding effect on future disputes.

The Employee acknowledges that they have read, understood, and agree to be bound by all terms and conditions set forth in this Agreement.

The Employer may assign this Agreement to any successor or affiliate without the consent of the Employee.

**\*\*SIGNED\*\*** by the parties on the 10th day of January 2026:

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**\*\*FOR THE EMPLOYER:\*\***

**\*\*ABC TRADING (PRIVATE) LIMITED\*\***

Signature: \_\_\_\_\_

Name: Nimal Fernando

Designation: Director

Date: 10/01/2026

[COMPANY SEAL]

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**\*\*FOR THE EMPLOYEE:\*\***

Signature: \_\_\_\_\_

Name: Kasun Perera

NIC: 199012345678

Date: 10/01/2026

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**\*\*WITNESS:\*\***

Signature: \_\_\_\_\_

Name: Sunil Silva

NIC: 198567891234

Address: No. 45, Galle Road, Dehiwala

Date: 10/01/2026